

Lalita Kumari v. Govt. of Uttar Pradesh

Citation: (2014) 2 SCC 1 | Court: Supreme Court | Year: 2014

Coram: 5-Judge Constitution Bench (P. Sathasivam CJI) | Subject: Criminal Law & BNSS | Provisions: CrPC Sec 154 / BNSS Sec 173

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Registration of an FIR is mandatory under Section 154 CrPC (now Section 173 BNSS) if the information discloses the commission of a cognizable offence. Police officers have no discretion to conduct preliminary inquiry prior to FIR registration, except in narrow carved-out exceptions.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding CrPC Sec 154 / BNSS Sec 173. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to CrPC Sec 154 / BNSS Sec 173.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The word 'shall' in Section 154(1) leaves no room for police discretion. Permissible preliminary inquiries are limited to matrimonial disputes, commercial offences, medical negligence, and corruption cases, and must conclude strictly within 7 (now 14) days.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Mandated compulsory FIR registration upon disclosure of cognizable offences.
- â€¢ Restricted preliminary inquiry to strictly defined exceptions (matrimonial, medical, commercial).
- â€¢ Prescribed disciplinary action against police officers refusing to register FIRs.